

were interfered with by the improper performance of management duties under the Management Agreements (FAC ¶¶ 76, 78 ["as part of their management" of the properties, the acts and omissions in management caused the interference with the tenant contracts].) The foundation for the claim against Alder Creek based on Plaintiffs' allegations of the cause of the interference therefore fails, and the FAC fails to state this cause of action against Alder Creek. The eighth cause of action against Alder Creek fails for a similar reason. (See FAC ¶¶ 83 ["Pursuant to the Agreements . . ."], and 84 ["as part of their management" of the properties].)

6. Declaratory Relief (10th C/A) and Accounting (11th C/A)

The controversy Plaintiffs allege exists between the parties is allegedly regarding "the rights, duties, responsibilities and obligations" under the Management Agreements. (FAC¶ 96.) (See also FAC ¶ 97 [alleging a material condition of the Management Agreements is for defense, indemnification, and insurance coverage].) Alder Creek is not a party to the Management Agreements, so this cause of action does not allege a basis for obtaining declaratory relief against Alder Creek regarding the rights and obligations of the parties to those agreements.

An accounting cause of action requires allegations of a relationship that supports the need for the defendant to account to the plaintiff. (*Sass, supra*, 10 Cal.5th at 869; *Teselle, supra*, 173 Cal.App.4th at 179.) Plaintiffs have not alleged a relationship with Alder Creek based on the Management Agreements or any agency relationship.

7. Conclusion as to Alder Creek (3rd – 11th C/As)

For the reasons stated, the motion for judgment on the pleadings as to the third through eleventh causes of action alleged against Alder Creek is **granted, with leave to amend**.

6. 9:00 AM CASE NUMBER: C24-01562

CASE NAME: MARK SHOTWELL VS. STATE FARM GENERAL INSURANCE COMPANY

**\*HEARING ON MOTION FOR DISCOVERY TO COMPEL FURTHER DISCOVERYRESPONSES FROM  
DEFENDANT STATE FARM GENERAL INSURANCE COMPANY**

**FILED BY:**

**\*TENTATIVE RULING:\***

Appearance required. Counsel for the parties shall be prepared to discuss Request for Production number 10 and Special Interrogatory 4.

7. 9:00 AM CASE NUMBER: C24-01921

CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO

**\*HEARING ON MOTION IN RE: DISQUALIFY COUNSEL FOR UNAUTHORIZED DOCUMENT  
COLLECTION AND POSSESSION OF TAX RECORDS.**

**FILED BY:**

**\*TENTATIVE RULING:\***

Before the Court is Defendant Albert D. Seeno, Jr., Defendant Willow View Association, and Eden Valley Ranch LLC (collectively, “Defendants”) motion to disqualify counsel of record for Plaintiff David T. Seeno (“Plaintiff”).

Defendants move to disqualify counsel pursuant to CCP §128 on the grounds that, among other alleged discovery misconduct, counsel “improperly and without authorization obtained possession of [Albert D. Seeno, Jr.]’s confidential income tax returns and income tax filings.” (Notice of Motion at 2:15-16.)

For the following reasons, the motion is **denied**.

**Requests for Judicial Notice**

Defendants request judicial notice of several pleadings and orders in C22-01746 and P24-00908.

“A court may take judicial notice of the existence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments.” (*People v. Franklin* (2016) 63 Cal.4th 261, 280 [quoting *Day v. Sharp* (1975) 50 Cal.App.3d 904, 914].)

Subject to that limitation, the request is **granted**. (Evid. Code § 452(d).)

**Brief Factual and Procedural Background**

The instant case, filed in 2024, relates to a property known as Eden Valley Ranch. At all relevant times Defendant Albert D. Seeno Jr. has maintained control over the Ranch. For decades, the Plaintiffs enjoyed unrestrained access to the Ranch, including being able to stay there for long periods of time. Over the years, Plaintiffs amassed a large collection of personal property which they stored at the Ranch without incident. This personal property is alleged to have grown to millions of dollars in assets.

It is alleged that in early 2024, Defendant Albert D. Seeno Jr. revoked permission for the Plaintiffs to enter the Ranch. This includes removing Plaintiffs’ ability to collect and remove their personal property from the Ranch. In addition to being prevented from obtaining their personal property, Plaintiffs allege that Defendant is improperly relocating some of their property (without their permission) and is asserting ownership over some of their possessions.

As a result of the above, Plaintiffs filed a Complaint on October 14, 2023, alleging four causes of action: (1) conversion; (2) civil remedy for stolen goods; (3) replevin – personal property; and (4) injunctive relief. Plaintiffs sought a temporary restraining order restraining enjoining Defendants from interfering with Plaintiffs’ access to their personal property located at the Ranch. That request was denied.

Plaintiffs also moved for a preliminary injunction seeking an order restraining and enjoining Defendants from interfering with Plaintiffs’ ownership rights in their personal property, removal or transfer or Plaintiffs’ right to possession of same. That motion was also denied.

Defendants filed the instant motion to disqualify on August 22, 2025, on the grounds that “counsel of record for David [T.] Seeno, Coblenz, Patch, Duffy Bass LLP, improperly and without authorization collected documents from the email domain housing the emails of relevant company businesses

owned or controlled by [Albert D. Seenno, Jr.] (@seenohomes.com) which included the entire email boxes of Seenno company executives, general counsel and other key employees, and improperly and without authorization obtained possession of [Albert D. Seenno, Jr.]’s confidential income tax returns and income tax filings.” (Notice at 2:12-16.)

The instant case was consolidated with several business disputes between Seenno-related entities in September 2025. Many of the other lawsuits between Albert D. Seenno III and Albert D. Seenno Jr. and the entities that each of them control have been stayed pending stipulations to dismiss based upon the parties’ settlement agreement.

### **Standard**

“A court’s authority to disqualify a lawyer in a pending proceeding derives from its inherent power to regulate the conduct of court officers, including attorneys, in furtherance of the sound administration of justice.” *City of San Diego v. Superior Court* (2018) 30 Cal.App.5th 457, 469.) “Whether an attorney should be disqualified is a matter addressed to the sound discretion of the trial court.” (*Henricksen v. Great American Savings & Loan* (1992) 11 Cal.App.4th 109, 113.)

Disqualification, however, is “a drastic remedy that should be ordered only where the violation of the privilege or other misconduct has a ‘substantial continuing effect on future judicial proceedings.’” (*Id.* at 462 [quoting *Gregori v. Bank of America* (1989) 207 Cal.App.3d 291, 309].) “There must be a ‘reasonable probability’ and ‘genuine likelihood’ that opposing counsel has ‘obtained information the court believes would likely be used advantageously against an adverse party during the course of the litigation.’” (*Ibid.*)

“Motions to disqualify counsel are especially prone to tactical abuse because disqualification imposes heavy burdens on both the clients and courts: clients are deprived of their chosen counsel, litigation costs inevitably increase and delays inevitably occur. As a result, these motions must be examined ‘carefully to ensure that literalism does not deny the parties substantial justice.’” (*City of Santa Barbara v. Superior Court* (2004) 122 Cal.App.4th 17, 22 [quoting *People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1144].)

“Although disqualification necessarily impinges on a litigant’s right to counsel of his or her choice, the decision on a disqualification motion ‘involves more than just the interests of the parties.’ [Citation.] When ruling on a disqualification motion, ‘[t]he paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar. The important right to counsel of one’s choice must yield to ethical considerations that affect the fundamental principles of our judicial process.’” (*Clark v. Superior Court* (2011) 196 Cal.App.4th 37, 47-48.) “It must be remembered, however, that disqualification is a drastic course of action that should not be taken simply out of hypersensitivity to ethical nuances or the appearance of impropriety.” (*Roush v. Seagate Technology, LLC* (2007) 150 Cal.App.4th 210, 219; see *City of San Diego, supra*, 30 Cal.App.5th at p. 470 [“We do not disqualify a lawyer from representing a client to punish the lawyer’s mistakes or even bad behavior.”].)

When an attorney has improperly or inadvertently received documents or information protected by an opposing party’s attorney-client privilege, disqualification may be a proper “prophylactic measure to prevent future prejudice to the opposing party from information the attorney should not have possessed.” (*McDermott Will & Emery LLP v. Superior Court* (2017) 10 Cal.App.5th 1083, 1120; see *Wu v. O’Gara Coach Co., LLC* (2019) 38 Cal.App.5th 1069, 1083 [disqualification warranted only when privileged information possessed by attorney is “found to be directly at issue in, or have some critical importance to” the current litigation]; *San Diego, supra*, 30 Cal.App.5th at p. 472 [disqualification

proper only when there is ‘a “genuine likelihood” that the attorney’s status or misconduct “will affect the outcome of the proceedings before the court”’[.]’)

“When a party moves to disqualify opposing counsel based on allegedly improper receipt of privileged or confidential information, the party seeking disqualification has the initial burden to show its adversary possesses confidential information materially related to the proceedings before the court. [Citation]” (*Sundholm v. Hollywood Foreign Press Association* (2024) 99 Cal.App.5th 1330, 1341.)

#### **Analysis**

Defendants’ motion is predicated on their contention that email searches conducted by counsel for Plaintiffs in 2022 while representing Albert D. Seeno III were both “secret” and “unauthorized,” and that proposed use of those discovery materials in the instant case, where counsel also represents David T. Seeno, is “an unprecedented violation of ethical and legal canons and an affront to the judicial system.” (Mot. at 10:5-6.)

At the outset, the Court is skeptical that the collection of documents described by Defendants was itself a discovery violation. At the time of the document collection whether Albert D. Seeno III was active CEO of several Seeno entities or whether he had been terminated under his employment agreement was subject to dispute. Consequently, the Court cannot conclude that the electronic discovery collections to which Defendants’ object was beyond Albert D. Seeno III’s custody and control as CEO. Even assuming *arguendo* that the breadth of this document collection was somehow misconduct, the Court is not aware of any authority that supports disqualification of counsel for improper electronic searches alone (without some evidence of specific privileged documents having been retrieved through those searches).

Here, Defendants point to just one document—a spreadsheet relating to a 2013 Restructuring Agreement collected from Kevin McCauley’s email. (See Mot. at § I(B) and Gallagher Decl. ¶ 3, Ex. 2.) The Court understands that this document was the subject of correspondence between counsel for the parties in March of 2025 and that each hold a different position regarding the privilege of that document. (See Yu Decl. ¶ 34 and Ex. O.) That said, the Court understands that counsel for Plaintiffs sequestered the document in order that counsel for Defendants could pursue a privilege claim with the Discovery Referee. Counsel for Defendants did not do so.

Critically absent from Defendants’ motion is evidence that there is any privileged material that is likely to be prejudicial in this litigation—whether the broader consolidated action altogether, or this specific case which involves the alleged conversion of personal property at a family-owned Ranch. In the absence of such a material link, the Court cannot conclude that disqualification is warranted. Fundamentally this is a discovery dispute and there are other mechanisms available to Defendants to resolve their issues with document collection and production. The extraordinary step of disqualifying counsel for Plaintiffs is unwarranted on these facts. The motion is **denied**.

**8. 9:00 AM CASE NUMBER: C24-02339  
CASE NAME: JUDY WOBLESKI VS. CITY OF WALNUT CREEK  
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT. FILED BY CITY OF WALNUT CREEK.**